

C. Attorney fees

Plaintiff seeks one-third of the total settlement amount as fees, relying on the “common fund” theory. Even a proper common fund-based fee award, however, should be reviewed through a lodestar cross-check. In *Lafitte v. Robert Half International* (2016) 1 Cal.5th 480, 503, the Supreme Court endorsed the use of a lodestar cross-check as a way to determine whether the percentage allocated is reasonable. It stated: “If the multiplier calculated by means of a lodestar cross-check is extraordinarily high or low, the trial court should consider whether the percentage used should be adjusted so as to bring the imputed multiplier within a justifiable range, but the court is not necessarily required to make such an adjustment.” (*Id.*, at 505.) Following typical practice, however, the fee award will not be considered at this time, but only as part of final approval. Counsel are directed to prepare a lodestar fee estimate for the motion for final approval.

The reasonableness of litigation costs and the settlement administrator’s fees will be considered at final approval.

Similarly, the requested representative payment of \$10,000 for plaintiff will be reviewed at time of final approval. Criteria for evaluation of representative payment requests are discussed in *Clark v. American Residential Services LLC* (2009) 175 Cal.App.4th 785, 804-807.

D. Conclusion

The Court finds that the agreement is sufficiently fair, reasonable, and adequate, to justify preliminary approval, and grants the motion.

If approval is ultimately granted, counsel will be directed to prepare an order reflecting this tentative ruling, the other findings in the previously submitted proposed order, and to obtain a hearing date for the motion for final approval from the Department clerk. Other dates in the scheduled notice process should track as appropriate to the hearing date. The ultimate judgment must provide for a compliance hearing after the settlement has been completely implemented. Plaintiffs’ counsel are to submit a compliance statement one week before the compliance hearing date. 5% of the attorney’s fees are to be withheld by the claims administrator pending satisfactory compliance as found by the Court.

7. 9:00 AM CASE NUMBER: C24-02437

CASE NAME: OMAR HASHIMI VS. JAMILA KOSHANI

HEARING ON DEMURRER TO: COMPLAINT

FILED BY: KOSHANI, JAMILA

TENTATIVE RULING:

Before the Court is a demurrer by defendants Jamila Koshani and Cyrus Eghbalian to the complaint. For the reasons set forth, the Court rules as follows: (a) special demurrer to complaint in its entirety for uncertainty – **sustained, with leave to amend**; and (b) general demurrers to the second through five causes of action – **sustained, with leave to amend**. Plaintiff shall file any amended complaint **by December 5, 2025**.

Background

Plaintiff Omar Hashimi alleges that he worked as a chef at the restaurant Zalla Kabob House which is the "dba" of Zalla Inc. (Compl. ¶ 9.) He alleges that defendant Jamila Koshani "made arrangements" so that Plaintiff could purchase 50% of the shares of Zalla Inc. from defendant Roya Akbar, and he attaches a "Business Bill of Sale" as Exhibit A to the complaint ("Sale Contract"), reflecting the purchase agreement. (FAC ¶ 10.) He alleges defendant Cyrus Eghbalian was a "beneficiary" of the Sale Contract and that the Sale Contract called for Eghbalian and Akbar to transfer the real property lease and wine and beer license to Plaintiff. (FAC ¶ 10.)

Plaintiff alleges he paid the \$65,000 purchase price for the shares. (Compl. ¶ 10.) Plaintiff alleges he made demand on Koshani and Akbar to transfer the shares to the corporation, on Eghbalian and Akbar to add him to the lease and liquor license and the corporate bank accounts, but they refused in breach of "their contractual obligations." (Compl. ¶ 12.) Plaintiff alleges he worked as a chef without pay and that "defendants" failed and refused to pay him his wages earned from April 7, 2024 (or April 15, 2024) to July 5, 2024. (Compl. ¶¶ 9, 15, 18, 21, 22.)

Plaintiff filed a complaint against Zalla Inc., Koshani, Akbar, and Eghbalian alleging 11 causes of action, including a number of causes of action for Labor Code wage and hour violations. Koshani and Eghbalian have filed a demurrer to the complaint, challenging the sufficiency of the allegations of the second through fifth causes of action by general demurrer, and making a special demurrer for uncertainty as to the complaint in its entirety.

Legal Standards Governing Demurrer

In ruling on the demurrer, the Court must accept as true all well-pleaded factual allegations of the complaint, but not legal or factual conclusions or contentions of law. (*City of Dinuba v. County of Tulare* (2007) 41 Cal. 4th 859, 865.) The Court gives "the complaint a reasonable interpretation, reading it as a whole and its parts in their context. [Citation omitted.]" (*Evans v. City of Berkeley* (2006) 38 Cal. 4th 1, 6.) (*See also* Code Civ. Proc. § 452.) In ruling on a demurrer, the Court also considers matters of which the Court can properly take judicial notice. (*Carloss v. County of Alameda* (2015) 242 Cal. App.4th 116, 123.) If a complaint fails to state a cause of action but there is a reasonable possibility of amendment to cure the deficiencies, then leave to amend must be granted. (*Quelimane Co. v. Stewart Title Guaranty Co.* (1998) 19 Cal.4th 26, 39.)

A demurrer must dispose of an entire cause of action. (*Daniels v. Select Portfolio Servicing, Inc.* (2016) 246 Cal.App.4th 1150, 1167, overruled in part on other grounds by *Sheen v. Wells Fargo Bank, N.A.* (2022) 12 Cal.5th 905, 919; *PH II, Inc. v. Superior Court* (1995) 33 Cal.App.4th 1680, 1682-1683.) As a general matter, demurrers for uncertainty are disfavored. (*Lickiss v. Financial Industry Regulatory Authority* (2012) 208 Cal.App.4th 1125, 1135; *A.J. Fistes Corp. v. GDL Best Contractors, Inc.* (2019) 38 Cal.App.5th 677, 695 ["'[U]nder our liberal pleading rules, where the complaint contains substantive factual allegations sufficiently apprising defendant of the issues it is being asked to meet, a demurrer for uncertainty should be overruled or plaintiff given leave to amend.' [Citations omitted.]"].)

Analysis

A. Special Demurrer for Uncertainty as to Complaint in Its Entirety

Demurring parties make a special demurrer for uncertainty as to the complaint as a whole under Code of Civil Procedure section 430.10(f). They argue that the complaint names four defendants and

alleges eleven causes of action, but the complaint fails to identify the defendants against whom each of the eleven causes of action are asserted. Plaintiff's opposition does not respond to these arguments.

"California Rules of Court, rule 2.112 provides that each cause of action should be headed so as to identify briefly the nature of the claim asserted and if there is more than one, it should identify the defendant or defendants against whom the cause of action is being asserted. As the leading practical treatise advises, failure to comply with rule 2.112 presumably renders a complaint subject to a motion to strike (§ 436), or a special demurrer for uncertainty. [Citation omitted.]" (*Grappo v. McMills* (2017) 11 Cal.App.5th 996, 1014 [holding default judgment improperly entered as, among other reasons, the complaint failed to comply with Rule 2.112].) (*See also* Cal. R. Ct., Rule 2.112, subpart (4).)

The Court also notes that Plaintiff has also combined the distinct causes of action of intentional misrepresentation and negligent misrepresentation under a single cause of action. (Compl. p. 6, ll. 2-21.) This combining of causes of action under a single heading also violates the letter and spirit of Rule 2.112. The causes of action should be separately stated in any amended complaint Plaintiff may file. (Cal. R. Ct., Rule 2.112, subparts (1) and (2).)

The special demurrer for uncertainty as to the complaint in its entirety is **sustained, with leave to amend**.

B. General Demurrer to Second, Third, and Fourth Causes of Action

Plaintiff alleges "second and third causes of action" under a single heading, with the subheading "Negligent and Intentional Misrepresentation," and with the same allegations supporting both causes of action. (Compl. ¶¶ 1-30.) He also alleges a separate fourth cause of action for "Fraud."

1. Legal Background and Elements of the Causes of Action

" 'The elements of fraud, which give rise to the tort action for deceit, are (a) misrepresentation (false representation, concealment, or nondisclosure); (b) knowledge of falsity (or 'scienter'); (c) intent to defraud, i.e., to induce reliance; (d) justifiable reliance; and (e) resulting damage.' [Citations omitted.]" (*Lazar v. Superior Court* (1996) 12 Cal.4th 631, 638.) (*See also Rutherford Holdings, LLC v. Plaza Del Rey* (2014) 223 Cal. App. 4th 221, 234.) "In California, fraud must be pled specifically; general and conclusory allegations do not suffice. [Citation omitted.]" (*Lazar, supra*, 12 Cal.4th at 645 [citing among others *Stansfield v. Starkey* (1990) 220 Cal. App. 3d 59, 74 and stating the policy of liberal construction of pleadings does not apply].) The specificity requirement means the pleading must allege " 'how, when, where, to whom, and by what means the representations were tendered.' [Citation, italics, and some internal quotation marks omitted.]" (*Lazar, supra*, 12 Cal.4th at 645, quoting *Stansfield, supra*, 220 Cal. App. 3d at 73.)

" 'Promissory fraud' is a subspecies of the action for fraud and deceit. A promise to do something necessarily implies the intention to perform; hence, where a promise is made without such intention, there is an implied misrepresentation of fact that may be actionable fraud. [Citation omitted.]" (*Id.* at 638.) "To maintain an action for deceit based on a false promise, one must specifically allege and prove, among other things, that the promisor did not intend to perform at the time he or she made the promise and that it was intended to deceive or induce the promisee to do or not do a particular

thing. [Citations omitted.]" (*Tarmann v. State Farm Mut. Auto. Ins. Co.* (1991) 2 Cal.App.4th 153, 159 [emphasis added].) Proof of subsequent nonperformance is not sufficient to support an inference of intent not to perform at the time the contract was made to state a claim for false promise. (*Tenzer v. Superscope* (1985) 39 Cal.3d 18, 30-31.)

The elements of a claim for negligent misrepresentation are similar to intentional misrepresentation but that claim "does not require intent to defraud but only the assertion, as a fact, of that which is not true, by one who has no reasonable ground for believing it to be true. [Citation omitted.]" (*Conroy v. Regents of University of California* (2009) 45 Cal.4th 1244, 1255 [citing *Small v. Fritz Companies, Inc.* (2003) 30 Cal.4th 167, 173-174].)

2. Application to Plaintiff's Allegations

Plaintiff alleges that he entered into the agreement to buy 50% of the shares of Zalla Inc. from Akbar, that he paid the \$65,000 consideration for the shares, but the shares were not transferred to him, and that he was neither added to the lease nor was escrow opened to transfer the beer and wine license to him "as promised." (Compl. ¶ 27.) These allegations describe a breach of the Sale Contract.

As relevant to the demurring defendants, Plaintiff alleges Koshani orally represented to him that the 50% shares held by Akbar would be sold to him, and that the representations regarding the sale were "negligent" and made with the intention to induce Plaintiff to pay the purchase price. (Compl. ¶¶ 27, 28.) He then alleges it was negligent of Akbar (the other contracting party) to make the representations because Koshani and Eghbalian would never transfer the shares or the corporate assets, and that Akbar knew the representations were untruthful. (Compl. ¶¶ 28, 29.) In the fraud cause of action, Plaintiff alleges Akbar, Koshani, and Eghbalian "refused to transfer the shares" which was a "fraud" on Plaintiff to "procure" his \$65,000 and his labor. (Compl. ¶ 32.)

Demurring parties argue that the claim that the shares were not transferred is contradicted by the Sale Contract which provides Akbar "hereby sell[s], transfer[s], and convey[s]" specified business assets, including the shares. (Compl. Exh. A [emphasis added].) The Sale Contract is ambiguous, however, based on the second paragraph of typewritten text. The text refers to the lease being transferred from the previous owners and the beer and wine license transferred, with the transfer "taking affect from 4/15/2024" based on the transfer of those other assets, which Plaintiff alleges never occurred. The Court cannot say as a matter of law the shares were transferred. Further, Plaintiff specifically alleges the remainder of the business assets were not transferred despite contrary representations, such that the demurring parties' interpretation of the Sale Contract even if accepted would not fully dispose of the causes of action and claimed breaches and injury asserted by Plaintiff.

The Court, however, agrees with the demurring parties that the second through fourth causes of action are not pled with the specificity required to plead negligent or intentional misrepresentation or fraud. Plaintiff does not allege specifically who made what representation(s) to him that he contends was false, when each such representation was made by each defendant, and the manner in which each such representation was made to him. Plaintiff's opposition to the demurrer does not contend otherwise and cites no allegations of the complaint that satisfy the specificity requirement.

Further, to state claims for fraud and intentional misrepresentation, Plaintiff has to allege that the person who allegedly made the misrepresentation knew when the person made the representation that the representation was false or untrue and that the person made the representation with the

intent to induce Plaintiff to rely on the representation. As presently pled, it is not clear who Plaintiff contends made what false representations that the person knew were false when made. (Compl. ¶¶ 27-29.)

Plaintiff also alleges that Koshani and Eghbalian refused to transfer the shares in Zalla Inc. to him (Compl. ¶ 32), but it is not clear what role Koshani or Eghbalian had in transferring the shares, since Plaintiff alleges that he purchased shares from Akbar. If the shares were owned by Akbar, Plaintiff does not allege facts explaining how Koshani or Eghbalian could transfer or refuse to transfer the shares of another shareholder. There are no allegations as to how they could or did control the transfer of shares owned by another shareholder (Akbar).

To the extent that Plaintiff's claims of negligent and intentional misrepresentation and fraud are based on a claim of false promise made without intention to perform, the complaint also fails to allege facts to show that the defendants made promises to him which they did not intend to perform at the time they made the promises. (*Tarmann, supra*, 2 Cal.App.4th at 159; *Tenzer, supra*, 39 Cal.3d at 30-31.) Plaintiff alleges that Akbar and Koshani orally represented Akbar would sell her "interest" in Zalla Inc. but then alleges only that Akbar knew the representation was false or that Akbar made the representation negligently. (Compl. ¶¶ 27-29.)

Plaintiff may be able to allege additional facts to state these claims against the demurring defendants and to allege the elements with specificity as required. The general demurrers to the second through fourth causes of action are **sustained, with leave to amend**.

C. General Demurrer to Fifth Cause of Action for Civil Conspiracy

1. Legal Background and Elements

" 'Conspiracy' " itself is not a cause of action; conspiracy allegations are typically made in order to assert liability against an actor who did not participate in the underlying wrongful conduct alleged to have been committed by another defendant. [Citations omitted.]" (*American Master Lease LLC v. Idanta Partners, Ltd.* (2014) 225 Cal.App.4th 1451, 1473.) "[A] plaintiff must plead '(1) formation and operation of the conspiracy and (2) damage resulting to plaintiff (3) from a wrongful act done in furtherance of the common design.' [Citation omitted.]" (*Daniels, supra*, 246 Cal.App.4th at.) "To establish conspiracy, a plaintiff must allege that the defendant had knowledge of and agreed to both the objective and the course of action that resulted in the injury, that there was a wrongful act committed pursuant to that agreement, and that there was resulting damage. [Citation omitted.]" (*IIG Wireless, Inc. v. Yi* (2018) 22 Cal.App.5th 630, 652].)

2. Application to Plaintiff's Allegations

The predicate torts on which Plaintiff's civil conspiracy claim is founded are the second through fourth causes of action for negligent and intentional misrepresentation and fraud, the allegations of which are incorporated into the conspiracy cause of action. Having sustained demurrers to those causes of action as defective for the reasons stated above, the civil conspiracy claim also fails. (*Stansfield, supra*, 220 Cal.App.3d at 75-76.) This is sufficient to warrant sustaining the general demurrer to the fifth cause of action.

The civil conspiracy claim as pled also fails because Plaintiff has not alleged that Koshani and Eghbalian had knowledge of and agreed to the formation of a scheme to defraud Plaintiff out of his

\$65,000 payment and his labor, based on their knowledge of the intention of one or more of the defendants to make a false promise or misrepresentation that there would be a transfer of Akbar's shares and part ownership of the business assets. Plaintiff makes a general allegation that the defendants "were acting in concert with each other," but he does not allege that these defendants knew of the scheme to defraud and intended to aid in its commission.

The general demurrer to the fifth cause of action is **sustained, with leave to amend**.

8. 9:00 AM CASE NUMBER: C24-03076
CASE NAME: DEJA JONES VS. JOHN MUIR HEALTH
HEARING ON DEMURRER TO: 1ST AMENDED COMPLAINT
FILED BY: JOHN MUIR HEALTH

TENTATIVE RULING:

Continued by stipulation of the parties to December 11, 2025, 9:00 a.m.

9. 9:00 AM CASE NUMBER: C24-03076
CASE NAME: DEJA JONES VS. JOHN MUIR HEALTH
***HEARING ON MOTION IN RE: STRIKE FIRST AMENDED COMPLAINT**
FILED BY: JOHN MUIR HEALTH

TENTATIVE RULING:

Continued by stipulation of the parties to December 11, 2025, 9:00 a.m.

10. 9:00 AM CASE NUMBER: C25-01466
CASE NAME: SANTO SANTOMAURO VS. LONE TREE ESTATES OWNERS' ASSOCIATION
HEARING ON DEMURRER TO: COMPLAINT
FILED BY: NEUMILLER & BEARDSLEE

TENTATIVE RULING:

Defendants Neumiller & Beardslee and NB Association Services demur to plaintiff Santo Santomauro's complaint for wrongful foreclosure and other causes of action. They argue that complaint fails as to Neumiller & Beardslee because it does not assert any cause of action against them, and fails as to NB Association Services because it alleges no actionable conduct by it.

Plaintiff has filed no opposition. Proof of service is in the file, including a notice of demurrer that sets forth the hearing date and time.

The demurrer is sustained, with leave to amend.

11. 9:00 AM CASE NUMBER: C25-01466
CASE NAME: SANTO SANTOMAURO VS. LONE TREE ESTATES OWNERS' ASSOCIATION
HEARING ON DEMURRER TO: COMPLAINT
FILED BY: LONE TREE ESTATES OWNERS' ASSOCIATION

TENTATIVE RULING:

Defendant Lone Tree Estates demurs to plaintiff Santo Santomauro's complaint for wrongful foreclosure and other causes of action. Lone Tree argues that the complaint fails because the foreclosure here was a judicial foreclosure, in which his arguments were considered and rejected.